

Envato Elements License

2 months ago • Updated

Making it easy to license your assets

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One simple commercial license

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Clear guidelines on what's not allowed

Some common-sense limitations do apply, as set out below:

- You can't re-sell, or re-distribute items;



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- You can't use items in on-demand services;
- You generally can't use items as the basis for merchandising. For example, printing a logo from Envato straight onto a T-shirt is not allowed. See clause 12c below for the relevant terms and conditions; and
- You can't use music items in a **Broadcast** presentation.

Envato Elements License

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1. **Welcome:** This is the Envato Elements License (**Elements License**), applicable to **Individuals** and **Teams** subscriptions for Envato Elements only. If you require **Enterprise** license rights for Envato Elements, please **contact us**.
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The low-down! The nuts and bolts of the Elements License

Your use of an Item is subject to the terms of this Elements License and the **Elements License**

FAQ so please take the time to read this section carefully.

4. **License granted:** When you download an Item, a license is created. This license grants you a non-exclusive, commercial, worldwide and revocable right to use the Item for:
- a. Use for a Specific Project - use of the Item in one project to create a specific End Product; or
 - b. One Permitted Installation (Fonts and Add-Ons) - a single installation to one device for Fonts and Add-Ons.

To license and use an Item, you must have a valid and active subscription for Envato Elements. If you want to use the same Item for separate projects, you will need to **create a new license** for each end-use.

5. **Item ownership:** The Items available on Envato Elements are owned by the respective creators of the Item (each being an Author). You can't claim ownership of an Item, even if modified under clause 10, for example through content identification systems, and you only have the right to license each Item in accordance with the terms of this Elements License.
6. **Project Specific Use:** For Items other than Fonts and Add-ons, each license that is created for an Item permits use of the Item for one project to create a specific End Product (requiring an application of **skill and effort**) in one of the following ways:
- a. for an Item that is a template, the End Product is a customized implementation of the Item;
 - b. for an audio Item, the End Product is a sync of the music with an audio-visual or audio-only work that incorporates the Item as well as other things, so that it is larger in scope and different in nature than the Item; and
 - c. for other types of Items (including video, graphics, photographs and 3D files), an End Product is a work that incorporates the Item as well as other things, so that it is larger in scope and different in nature than the Item.
7. **License for Fonts and Add-ons:** For Fonts and Add-ons, application of a license is the installation of the Item on your device. The license starts when you download and install the Item, and you can then use the Font or Add-on to create as many projects as you like. Your commercial rights to use End Products created with fonts remain permanent

for completed projects, even after subscription cancellation. However, you need an active subscription to install fonts and create new projects.

The "one project per license" approach is crucial to allow us to **fairly allocate subscription earnings among the Authors** who make their Items available on Envato Elements.

8. **License commencement:** The license for an Item starts when you download the Item or create a new license for an Item and the license is only valid if you complete the End Product while your subscription is active. Once the Item has been incorporated into a completed End Product during an active subscription term, the license becomes perpetual, which means that it continues for the life of the End Product, even after your subscription ends.

If you cancel your subscription and have not completed your End Product, the license for the Item is terminated and you have no further rights to use the Item.

9. **Distribution rights:** Each license for an Item includes the right to utilize the Item through communication to the public (performance), broadcast, display, distribution, and reproduction, but only as a part of the End Product which you have created with the Item. In respect of audio Items, see section 14 and 15 for special limitations on these rights.

Usage terms for Items

This section applies to the use of Items other than Fonts or Add-ons.

10. **Things you can do with an Item:** Where an Item has been used to create an End Product:

a. **Limited sublicense:**

- i. You can use an Item to create an End Product for yourself or for a client of yours. If you use an Item to create an End Product for a client, then you can transfer the final End Product to your client as long as you have followed the requirements in sections 5 and 6 and your subscription remains active.

ii. If you transfer an End Product to a client, you do so by sublicensing these license rights in any Item within that End Product. The sublicense must only be granted on condition that use of the Item by the client is limited to that use which is necessary in order to use the End Product. The Item must not be extracted, reproduced or used by the client in any other way.

It is important that you inform your client of the conditions of this Elements License and the sublicense. If you or your client wishes to use the same Item for another project, a new license must be created for that separate project.

b. Multiple copies: You can make any number of copies of the End Product created using an Item.

c. Distribution: You can distribute the End Product through multiple media, as set out in this Elements License.

d. Modification: You can modify or manipulate an Item, or combine the Item with other works, to suit your End Product. The resulting works created using the Item are subject to the terms of this license.

11. Items with multiple assets: If an Item contains multiple assets, you can use more than one asset to create an End Product, however, if you wish to use different assets from the Item to make different End Products, you must first register the Item for each separate End Product.

For example: If an Item contains a set of icons and you use more than one of these in a single End Product, you need only register the Item once. If you make five End Products using icons from the set, then you first need to register the Item five times: once for each End Product.

12. Things you can't do with an Item:

a. You can't use an Item to create an End Product after your Envato Elements subscription ends. If you've installed an Item (such as a Font or Add-on) on your device, you must uninstall the Item once your subscription ends.

b. You can't redistribute an Item as stock, in a tool or template, or with source files. You can't do this with an Item either on its own or bundled with other Items, even if you

modify the Item. You can't redistribute or make available the Item as-is or with superficial modifications. These things are not allowed even if the redistribution is for free.

c. You can't use an Item in any application allowing an end user to customize a digital or physical product to their specific needs, such as an “on demand”, “made to order” or “build it yourself” application.

d. You can't use an Item for merchandising, which means an End Product created using that Item where the primary value of the product lies in the Item itself, including:

i. an End Product where the Item serves as its core component, and where without the incorporation of the Item it would not fundamentally differ from any other product of similar nature and use; and/or

ii. an End Product where the incorporation of the Item is what makes the product fundamentally unique and valuable, and is the main driving factor for the sale of the End Product.

For clarity: End Products where skill and effort have been applied to incorporate the Item into a larger design (such as with text and other graphics/images) or used as product packaging are not considered merchandising and are allowed.

For example: You can't print an image out as a poster and sell copies of that poster, as the primary value of the poster is from the image itself. However, you can print an image as a book cover and sell copies of that book, as the primary value of the book is from the writing/ contents of the book and not the image itself.

e. You must not permit an end user to extract an Item and use it separately from the End Product created using that Item.

f. You can't claim trademark or service mark rights over an Item within the End Product created using that Item. For clarity, this doesn't prevent you claiming trademark or service mark rights over text or designs created using Item (including a Font or Add-on) where the trademark or service mark rights are not claimed over the Item itself.

License terms for Fonts and Add-ons

13. Fonts and Add-ons: For a Font or Add-on, these conditions apply:

a. The Font or Add-on can only ever be used by you, the Subscriber. This means that you cannot

transfer the Font or Add-on to someone else, or allow it to be used by someone else, even another person within the same company or a client.

b. You are entitled to install the Font or Add-on on up to two computers per subscription seat at one time.

Installation and use of the Font or Add-on can only take place while your Envato Elements subscription is active.

c. You can incorporate a web-enabled Font as part of an End Product, but your End Product must not encourage or facilitate users to extract the Font or create new text using it.

d. Except as set out in paragraph c., you can't:

i. redistribute the Font or Add-on (this includes no public distribution, display or performance). You also can't modify or make derivatives of the Font or Add-on; or

ii. incorporate or distribute the Font or Add-on within an End Product. But you may link the users of the End Product to where they can directly license the Font or Add-on. For clarity, this doesn't prevent you incorporating text or a design created using a Font or Add-on into an End Product, or distributing that End Product, where otherwise permitted under this license.

e. Fonts and Add-ons fall under the Item category of "Tools". Unless expressly stated, sections 10-12 apply to all other Tools, however, if a new Tool is added to Envato Elements, we may add specific license terms for that new Tool, similar to the terms which currently apply to Fonts and Add-ons.

f. What survives subscription cancellation: Any text, designs, logos, or other End Products you created using fonts during your active subscription retain their commercial license permanently. You can continue using these completed works in their original projects indefinitely, even after your subscription ends. What you cannot do after cancellation is install the font files on new devices or use them to create entirely new projects.

Music Item special terms

14. Music Items: For music Items, the rights granted under this Elements License are subject to the following restrictions:

a. **Broadcast use is not allowed.** For these purposes, a broadcast includes:

i. traditional television or radio broadcasts (e.g. terrestrial, cable or satellite TV and broadcast radio); and

ii. mobile or online substitutes for traditional television or radio broadcasts (e.g. mobile TV, IPTV (streaming TV or video-on-demand) and streaming radio).

Please [contact us](#) if you wish to use the music for a Broadcast.

b. If the End Product is a film, that film may not be theatrically released.

Distribution of a film is only permitted if that film is an “independent” film not intended for general theatrical release, such as student films or films distributed on online user generated platforms, or as part of film festival screenings.

Please [contact us](#) if you wish to use the music for a Broadcast.

c. The original author of the Item retains ownership of the Item. You can’t claim ownership of the Item, even if modified in accordance with this Elements License (e.g. through content identification systems).

For example: If you use a music track synced in your video, you can’t claim rights to the music (e.g. through applying “Content ID” or similar systems to the music in your video).

15. **Non-P.R.O. Music or P.R.O. Music:**

a. Non-P.R.O. Music. If the Item is Non-P.R.O. Music, this means it is not registered with any Performing Rights Organizations (**P.R.O.s**). Non-P.R.O. Music is generally not subject to any additional fees, but it is your responsibility to pay any performing rights fees that may apply in your country, which will depend on the rules of your local P.R.O., your local laws, and your use of the Item.

b. P.R.O. Music. If the Item is P.R.O. Music, this means the author of the item is a member of a P.R.O. and/or the item is registered with a P.R.O. For P.R.O. Music, public performance rights are not included with this Elements License.

c. If you intend to use the P.R.O. Music in an End Product that is publicly performed, then you may need to obtain additional performing rights from a P.R.O. and be subject to additional fees which are collected by a P.R.O. Nothing in this Elements License acts as a waiver of any P.R.O. rights or fees.

Miscellaneous

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For example: A theme might contain images licensed under a Creative Commons CCBY license. The CCBY license applies to those specific images. This license applies to the rest of the theme.

- 17. GPL Licenses:** For some Items, a GNU General Public License (**GPL**) or another open source license may apply. The terms of any applicable open source license will be included with the item (as a .txt file or, in some cases, embedded as part of the item itself). For any parts of the Item subject to the open source license, those open source license terms will apply to the extent that's determined by the open source license terms and the nature of the Item. For all other parts of the Item, this Elements License (and any third party licenses in accordance with section 16), will apply.

Open source licensing is relevant for themes and plug-ins for WordPress and other open source platforms. Where an Item has components that are licensed under the GPL or other open source license, information about the applicable license will be noted in the Item's download files. For more information, see [this article](#).

- 18. Responsibility for Items:** We are not responsible for the accuracy of the Items including the Item's description and any keywords provided by the Author and nor are we responsible for any component of an Item sourced from a third party. Content that is used by the Author to demonstrate how the Item works (for example things like photos in themes and audio files for videos) may have been sourced from a third party and it's your responsibility to [check the files](#) before you use the Item, to ensure that there is an appropriate license for your intended use. You can do this by downloading the Item and checking the files in the download package (documentation or licensing folders) before you use it in a project.
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Definitions

- **Add-on:** an Item that is a graphics file, software extension or utility used to create specific graphic effects and includes add-on actions, presets, brushes, layers and palettes.
- **Font:** an Item that is a file, or collection of files, used to render text using a specific graphic representation.
- **Tool:** an installable software extension or utility designed to perform specific tasks in order to create other works. Tools include Fonts, 3D and video software scripts, 3D and video software plug-ins, and graphics software Add-ons.

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